

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	04 – Economic Stability (ES)
	Part No./Name	F – Case Maintenance
	Section No./Name	F-100-FITAP-SNAP Claims
	Document No./Name	F-130-FITAP How to Determine Amount of Claim
	Effective Date	March 1, 2023

I. STATEMENT OF POLICY

WHEN DETERMINING THE AMOUNT OF THE CLAIM INCLUDE ALL MONTHS OF PARTICIPATION IN THE PROGRAM WHEN DETERMINING THE AMOUNT OF THE CLAIM. PARTICIPATION IN THE PROGRAM OCCURS WHEN THE BENEFITS ARE POSTED TO THE EBT ACCOUNT AND THE AVAILABILITY DATE IS REACHED, REGARDLESS OF WHETHER THE BENEFITS ARE ACCESSED BY THE HOUSEHOLD.

F-131-FITAP- PO HOW TO DETERMINE FIRST MONTH OF INELIGIBILITY OR OVERPAYMENT/OVERISSUANCE

FOR ERRORS PRESENT AT THE TIME OF CERTIFICATION, THE FIRST MONTH OF AN OVERPAYMENT/OVERISSUANCE IS THE FIRST MONTH AN ERROR CAUSES THE CLIENT TO RECEIVE MORE BENEFITS THAN HE WAS ENTITLED TO RECEIVE.

FOR CHANGES OCCURRING WITHIN A CERTIFICATION, THE FIRST MONTH OF AN OVERPAYMENT/OVERISSUANCE IS THE MONTH IN WHICH THE CHANGE WOULD HAVE BEEN EFFECTIVE HAD IT BEEN REPORTED AND ACTED UPON IN A TIMELY MANNER.

IF THE CHANGE OCCURRED IN A CASE AND WAS NOT REPORTED TIMELY, BENEFITS SHOULD HAVE BEEN TERMINATED OR REDUCED EFFECTIVE THE EARLIEST POSSIBLE MONTH AFTER THE EXPIRATION OF ADVANCE NOTICE OF ADVERSE ACTION, IF REQUIRED.

THE EFFECTIVE MONTH CANNOT BE LATER THAN THE SECOND MONTH AFTER THE CHANGE OCCURRED.

F-131-1-FITAP- PO Ineligibility or Overpayment/Overissuance Because Household Member is Incarcerated/Drug Related Felony Conviction

IF IT IS DETERMINED THAT A HOUSEHOLD REPORTED THAT A HOUSEHOLD MEMBER WAS LIVING IN THE HOME BUT THE MEMBER WAS ACTUALLY INCARCERATED DURING THE APPLICATION OR REDETERMINATION INTERVIEW, RECOVERY IS NEEDED. THE PERIOD OF RECOVERY BEGINS AT CERTIFICATION FOR AN APPLICATION, AND THE FIRST MONTH OF THE NEW CERTIFICATION FOR A REDETERMINATION.

PRIOR TO OCTOBER 2017 IF IT IS DETERMINED THAT A HOUSEHOLD FAILED TO REPORT A HOUSEHOLD MEMBER HAD BEEN CONVICTED OF A DRUG-RELATED FELONY AT THE APPLICATION OR REDETERMINATION INTERVIEW, RECOVERY IS NEEDED. THE PERIOD OF RECOVERY BEGINS AT CERTIFICATION FOR AN APPLICATION AND THE FIRST MONTH OF THE NEW CERTIFICATION FOR A REDETERMINATION.

EXAMPLE: AN APPLICANT, NOT PREVIOUSLY KNOWN TO * LITE **, SUBMITS AN APPLICATION. THE APPLICATION WAS CERTIFIED PRIOR TO OCTOBER 2017 AND THE WEEKLY DRUG MATCH. THE APPLICANT RECEIVED BENEFITS, HOWEVER, THE APPLICANT

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FAILED TO REPORT A DRUG-RELATED FELONY CONVICTION ON THE APPLICATION AND DURING THE INTERVIEW. AFTER THE NEXT WEEKLY MATCH WAS COMPLETED, THE CASE WAS AUTOMATICALLY PLACED IN ACTIVE CLOSURE (AC) STATUS SINCE THE CONVICTION DATE WAS WITHIN THE PAST 12 MONTHS. RECOVERY IS NEEDED FOR ALL BENEFITS ISSUED SINCE THE CLIENT FAILED TO REPORT THE CONVICTION ON HER APPLICATION.

F-132-FITAP- PO INELIGIBILITY OR OVERPAYMENT/OVERISSUANCE BECAUSE OF AGENCY DELAY

IF THE CLIENT MADE A TIMELY REPORT OF A CHANGE BUT THE WORKER DID NOT TAKE TIMELY ACTION, THEN THE FIRST OVERPAYMENT/OVERISSUANCE MONTH IS THE MONTH THE WORKER SHOULD HAVE MADE THE CHANGE EFFECTIVE.

IF A NOTICE OF ADVERSE ACTION WAS REQUIRED BUT NOT SENT, ASSUME THAT THE MAXIMUM ADVANCE NOTICE PERIOD EXPIRED WITHOUT THE HOUSEHOLD REQUESTING A FAIR HEARING.

II. PROCEDURES

1. DETERMINE THE FIRST MONTH OF OVERPAYMENT/OVERISSUANCE IN ACCORDANCE WITH THE FOLLOWING GUIDELINES AND PROCEDURES OUTLINED IN CHAPTER 00, MISCELLANEOUS ISSUANCES MANUAL, PART O, OVERPAYMENT/OVERISSUANCE PROCEDURES, [O-003](#).
2. COMPLETE A CORRECTED BUDGET FOR EACH MONTH OF OVERPAYMENT/OVERISSUANCE. Refer to Chapter 00, Part O, [O-004-2](#) for additional instructions.
3. SUBTRACT THE AMOUNT OF BENEFITS THE HOUSEHOLD SHOULD HAVE RECEIVED FROM THE AMOUNT IT ACTUALLY RECEIVED EACH MONTH. (For FITAP cases with child support collected by Child Support Enforcement (CSE), see No. 6.)
4. ADD TOGETHER THE AMOUNTS OF OVERPAYMENT/OVERISSUANCE FOR EACH MONTH.
5. DO NOT REDUCE THE AMOUNT OF AN OVERPAYMENT/OVERISSUANCE IN ONE MONTH BY THE AMOUNT OF AN UNDERPAYMENT/UNDERISSUANCE WHICH OCCURRED IN ANOTHER MONTH. REPORT UNDERPAYMENTS/ UNDERISSUANCES SEPARATELY BY:
 - Submitting a memo to the Fraud and Recovery Unit. (Refer to Chapter 7, Section G)

IN CASES WHICH HAVE BOTH AN UNDERPAYMENT/UNDERISSUANCE AND OVERPAYMENT/OVERISSUANCE, STATE OFFICE WILL OFFSET ONE AGAINST THE OTHER.

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6. During each month in which an ineligible payment occurred, reduce the amount of the ineligible payment by the amount of Child Support collected by CSE in that month.

Example:

Amt. of ineligible payment		\$200.00
Amt. C.S. collected	-	\$100.00

Loss Reported on Form 20CD		<u>\$100.00</u>
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During each month in which an overpayment occurred, reduce the amount of the overpayment by the amount of child support collected by CSE in that month that exceeds the amount for which the client was eligible.

Example:

Amt. paid		\$300.00
Amt. eligible	-	\$100.00

Overpayment		<u>\$200.00</u>
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Collection		\$175.00
Amt. eligible	-	\$100.00

Amt. of Reduction		<u>\$ 75.00</u>
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Amt. of Overpayment		\$200.00
Amt. of Reduction	-	\$ 75.00

Loss Reported on Form 20CD		<u>\$125.00</u>
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The amount collected exceeds the eligible amount by \$75.00. Therefore, the overpayment is reduced by \$75.00. The amount to be recovered is \$125.00.

NOTE: If the amount collected is less or equal to the eligible grant amount, no reduction is made.

The amount of Child Support collected and the amount of refund can be secured on-line from LASES on current cases. If the information required is prior to LASES implementation, clear SEIS history file. If the required information is not found on either LASES or SEIS, consult CSE Regional Office by memo for this information. Clearance with CSE is only required when information in the case record indicates that child support payments have been collected by CSE.

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III. FORMS AND INSTRUCTIONS

[OFS 20CD Form](#) / [Instructions](#) Report of Claim Determination

IV. REFERENCES

[Louisiana Administrative Code – Title 67 Social Services – Subpart 2 – Chapter 15: General Program Administration – Subchapter B. Recovery, §1503.](#)